

performed in connection with the borrower's default, including attorney fees, under section 14. As we have explained, the trust deed is properly read (only) to permit attorney fees to be added to the borrower's promissory note obligation, and the terms of the trust deed itself are all the “authority” that is necessary under the circumstances.

(*Chacker, supra*, 27 Cal.App.5th at 357.)

Like the provisions in *Hart* and *Chacker*, the purported attorney's fees provision in the Deed of Trust at issue here states: “If Borrower fails to perform the covenants and agreements contained in this Deed of Trust, or if any action or proceeding is commenced which materially affects the Lender’s interest in the Property, then Lender, at Lender’s option, upon notice to the Borrower, may make such appearances, disburse such sums, including reasonable attorneys’ fees, and take such action as is necessary to protect Lender’s interest... *Any amounts disbursed by Lender pursuant to this paragraph 7, with interest thereon, at the Note rate, shall become additional indebtedness of Borrower secured by this Deed of Trust...*” (RFJN, Ex. A.)

As stated in *Hart* and *Chacker*, this is not a provision pursuant to which attorney's fees are awarded as required for the recovery of attorney's fees pursuant to Civ. Code § 1717. (*Hart, supra*, 27 Cal.App.5th at 327; *Chacker, supra*, 27 Cal.App.5th at 357.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON.	MOTION TO COMPEL NONPARTY NON-DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION, SET ONE

Tentative Ruling: Hearing continued to 8/4/26.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600117	SMITH VS RIVERSIDE UNIFIED SCHOOL DISTRICT	HEARING ON ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling: Defendant’s UNOPPOSED Special Motion to Strike (Anti-SLAPP) pursuant to CCP §425.16 is granted. Plaintiff’s Complaint is stricken in its entirety.

Defendant is awarded Attorney’s Fees AGAINST Plaintiff in the amount of \$2,800 (8 hours at \$350/hour).

REQUESTS FOR JUDICIAL NOTICE

Court Grants Defendant’s requests for judicial notice of three documents.

Defendant requests judicial notice of the School District Board Policy 1312.1 (“Complaints Concerning District Employees”). This constitutes an official act and record of a public entity (Evid. Code § 452(c)) and is relevant to show Defendant’s official procedures for personnel investigations.

Defendant requests judicial notice of the Temporary Restraining Order dated 8/20/25 in the Riverside court and the resulting Restraining Order After Hearing. These are court records (Evid. Code § 452(d)) and are relevant to show causation in Plaintiff’s claims.

As a general rule, when a cause of action arises out of the furtherance of a defendant’s right of petition or free speech in connection with a public issue, it is subject to a special motion to strike. (Code Civ. Proc., § 425.16(b)(1).) An “act in furtherance of a person’s right of petition or free speech... includes any... written or oral statements made before a legislative, executive, judicial proceeding, or any other official proceeding authorized by law.” (Code Civ. Proc., § 425.16(e)(1).) Importantly, however, “[t]he anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 [emphasis in the original].) Thus, courts use a two-step evaluation to determine whether an action is a SLAPP suit subject to a special motion to strike: (1) the plaintiff’s claim must arise out of the defendant’s protected speech or petitioning; *and* (2) the defendant’s claim lacks even minimal merit. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89; *see also Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009-11.)

The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (*Wilcox v. Superior Court* (1994) 17 Cal.App.4th 809, 819.) To meet the initial burden, a defendant need only show that the complaint “*arises from*” defendant’s exercise of free speech or petition rights as defined in §425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) The act which forms the basis for the plaintiff’s cause of action or claim must itself have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76-78.) C.C.P. § 425.16(e) defines what qualifies as an “act in furtherance of a person’s right of petition or free speech.” It includes: (1) statements made *before* official proceedings (legislative, executive, or judicial); (2) statements made *in connection* with issues being considered by such bodies; (3) statements made *in a public place or forum* about matters of public interest; and (4) any *other conduct* that furthers the exercise of free speech or petition rights on public issues.

Once the defendant makes a prima facie showing, the burden shifts to the plaintiff to establish a “probability” that it will prevail on whatever claims are asserted against the moving defendant. (Code Civ. Proc., § 425.16(b).) The plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment. (*Navellier v. Sletten, supra*, 29 Cal.4th at 89, 93.) The court does not weigh the credibility or comparative strength of the evidence but instead accepts as true all evidence favorable to the plaintiff. (*Soukup v. Law*

Offices of Herbert Hafif (2006) 39 Cal.App.4th 260, 291; *Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 699-700.)

To prevail on their motion, Defendant must establish that Plaintiff's causes of action arise from their protected activity. "Arising from" means that the defendant's act underlying the plaintiff's causes of action must *itself* have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman, supra*, 29 Cal.4th at 78.) In other words, "the critical consideration is whether the cause of action is *based on* the defendant's protected free speech or petitioning activity." (*Navellier v. Sletten, supra*, 29 Cal.4th at 89.) Where a cause of action alleges both protected and unprotected activity, the court does not look to the "gravamen" of the cause of action as a whole. (*Bonni v. St. Joseph Health System, supra*, 11 Cal.5th 995 at 1011, noting that the Supreme Court has rejected the "gravamen" approach directed to an entire cause of action.) Instead, the court must identify each specific "claim" of wrongdoing alleged within the cause of action and determine whether liability for that claim is based on protected or unprotected activity. (*Ibid.*, at 1011, "[t]he attempt to reduce a multifaceted cause of action into a singular 'essence' would predictably yield overinclusive and underinclusive results.")

Here, Plaintiff's complaint identifies Defendant's alleged communication and forwarding of Plaintiff's email (for the planned protest) to the subject employee.

Under C.C.P. §425.16(e)(2), protected activity includes "any written or oral statement or writing made in connection with an issue under consideration or review by ... [an] official proceeding authorized by law." Statements or writings made in official proceedings or investigations by executive agencies or judicial bodies fall within the scope of the anti-SLAPP statute. (*Briggs v. Eden Council for Hope and Opportunity* (1999) 19 Cal.4th 1106, 1114.) A letter of citizen complaint against public employee conduct constitutes an "official proceeding authorized by law." (*Martin v. Kearney* (1975) 51 Cal.App.3d 309, 311.)

Here, Plaintiff e-mailed Defendant for a planned protest that concerns one of its employees. This triggered Defendant's response to "evaluate the allegations and determine whether further action or investigation is warranted." (Mesa Decl. ¶¶ 3-5; Board Policy 1312.1.) Robin Mesa, Defendant's Director of Classified Personnel, declares that Defendant's administrative protocols require personnel to review allegations and "communicate with relevant administrators, witnesses ... **and** the employee who is the subject of the complaint as necessary to evaluate the allegations." (Mesa Decl. ¶ 5.) Defendant's forwarding of Plaintiff's e-mail to the subject employee was therefore part of its formal investigation to "evaluate the allegations, obtain relevant information, and provide the subject employee an opportunity to respond as part of the District's review and response process." (*Id.*, ¶ 8.) Here, as the challenged communication and disclosure occurred within the Defendant's official administrative handling and investigation of a complaint against its employee, it constitutes a statement made in connection with an official proceeding. (C.C.P. 425.16(e)(2).) The claims therefore arise from protected activity. Defendant has met its burden.

The burden then shifts to Plaintiff to demonstrate a probability of prevailing on his claims. (Code Civ. Proc., § 425.16, subd. (b)(1).) The opposition must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment. (*Premier Med. Mgmt. Systems, Inc. v. California Ins. Guar. Ass'n* (2006) 136 Cal.App.4th 464, 476.) Plaintiff failed to submit an opposition. Accordingly, Plaintiff failed to demonstrate a probability of prevailing.

Pursuant to Code of Civil Procedure § 425.16(c), a defendant who prevails on a special motion to strike is entitled to recover their attorney's fees and costs.

CASE #	CASE NAME	HEARING NAME
CVRI2600117	SMITH VS RIVERSIDE UNIFIED SCHOOL DISTRICT	DEMURRER AND MOTION TO STRIKE

Tentative Ruling: Hearing is vacated as moot.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600253	MALHOTRA VS RIVIAN AUTOMOTIVE, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Defendant Rivian Automotive, Inc.'s Motion to Compel Arbitration is denied.

Defendant's request for judicial notice of Plaintiff's Complaint is granted.

WAIVER

Here, Defendant has filed an answer to the Complaint and asserted the arbitration clause as an affirmative defense. (See Answer filed March 26, 2026; First Amended Answer filed April 23, 2026.) A party desiring to pursue arbitration must exercise its right to arbitration by filing a petition under Code of Civil Procedure section 1281.2 or by raising the issue as an affirmative defense in its answer. (*Sargon Enters., Inc. v. Browne George Ross LLP* (2017) 15 Cal.App.5th 749, 767-768.) A delay in seeking enforcement of the arbitration agreement may constitute a waiver. (*Gunderson v. Superior Court* (1975) 46 Cal.App.3d 138, 144, disapproved on other grounds by *Doers v. Golden Gate Bridge etc. Dist.* (1979) 23 Cal.3d 180.) Nevertheless, the right to compel arbitration is not automatically waived. Here, Defendant has not waived its right to compel arbitration.

FEDERAL ARBITRATION ACT ("FAA")

Here, the question of whether FAA should apply is not subject to debate in this case. When the underlying agreement relied upon to compel arbitration evidences transactions involving commerce, as defined by the Federal Arbitration Act (9 U.S.C. §1 et seq.), federal law governs the interpretation of the agreements. (*Goldman v. KPMG*,